



BAKERSFIELD

PUBLIC WORKS

CITY OF BAKERSFIELD

FISCAL YEAR 2022-2023

ANNUAL COMPLIANCE REPORT FOR PLANNED SEWER AREA FEES

Prepared in accordance with California Government Code §66006

CITY OF BAKERSFIELD

**ANNUAL COMPLIANCE REPORT FOR
PLANNED SEWER AREA FEES**

FY 2022 – 2023

City Council

Karen Goh	Mayor
Eric Arias	Member/Ward 1
Andrae Gonzales	Vice Mayor/Member/Ward 2
Ken Weir	Member/Ward 3
Bob Smith	Member/Ward 4
Bruce Freeman	Member/Ward 5
Patty Gray	Member/Ward 6
Manpreet Kaur	Member/Ward 7

Administrative Personnel

Christian Clegg.....	City Manager
Virginia Gennaro	City Attorney
Christopher Boyle	Development Services Director
Jennifer Byers	Acting Economic & Community Development Director
Randy McKeegan	Finance Director
Anthony Galagaza	Fire Chief
Christi Tenter	Human Resources Director
Greg Terry	Police Chief
Gregg Strakaluse	Public Works Director
Rick Anthony	Recreation & Parks Director
Greg Pronovost	Technology Services Director
Kristina Budak	Water Resources Director

Annual Compliance Report for Planned Sewer Area Fees

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Introduction

There may be imposed by local ordinance a requirement for the payment of fees for purposes of defraying the actual or estimated costs of constructing planned drainage facilities for the removal of surface and storm waters from local or neighborhood drainage areas and of constructing planned sanitary sewer facilities for local sanitary sewer areas. (GC §66483)

Government Code Section 66006 requires that the local agency shall, within 180 days after the last day of each fiscal year, make available to the public specific information. The specific information to be made available to the public is summarized on Page 3 of this Report.

Pursuant to Government Code Section 66006, after the information contained in the Report is made available to the public, the Council shall review the information in the Report at the next regularly scheduled public meeting. However, the public meeting must occur not less than 15 days after the information contained in the Report is made available to the public.

There are currently eight planned sewer areas within the metropolitan Bakersfield area subject to Government Code Section 66006:

1. Allen Road Planned Sewer Area (Wards 4 & 5) – This PSA is in County Service Area 71 and was formed in association with Assessment District No. 96-2 with the intention of funding a sewer trunk line on Allen Road from White Lane north to a point ¼ mile south of Rosedale Highway. The City funded its portion of the work with Sewer Enterprise Funds and bond proceeds from the Assessment District.
2. Allen Road II Planned Sewer Area (Ward 4) – This PSA is in County Service Area 71 and was formed to repay the Sewer Enterprise Fund for the fronting cost of extending the Allen Road Trunk Line from Rosedale Highway to Noriega Road.
3. Brimhall Planned Sewer Area (Ward 4) – This PSA is in County Service Area 71 and was formed to reimburse the City for the construction of a sewer trunk line on Brimhall Road extending west from Allen Road about ¾ mile. Sewer Enterprise funds were used for this construction.
4. Curnow Planned Sewer Area (Wards 6 & 7) – This PSA was formed in response to the growth being experienced in southwest and south Bakersfield at the time. This PSA will fund the construction of a large sewer trunk line extending from Plant 3 along Curnow/Romero Road to Cottonwood Road. Portions of the line will be constructed by developers, with resultant reimbursement agreements.
5. Hooper Avenue and Kimberly Avenue Planned Sewer Area (Ward 3) – This PSA was formed to reimburse the City for the construction of a sanitary sewer line in the area of Kimberly Avenue and Hooper Avenue. In 2008 and 2009, two areas were annexed to the City. The City and neighborhood residents desired sewer facilities in these areas. The City has constructed and is continuing to construct sanitary sewer lines to accommodate those residents who desire to connect to the City's sewer system.

6. McAllister Ranch Planned Sewer Area (Ward 5) – This PSA was formed to fund the construction of a sewer trunk line on Panama Lane from Buena Vista Road to a point approximately 2 miles west of that intersection. The actual construction is to be completed as development occurs and would be subject to reimbursement agreements.
7. Panama & Cottonwood Planned Sewer Area (Ward 1) – This PSA was formed to fund the construction of segments 1 and 2 of sewer trunk line. Segment 1 includes manhole at intersection of Warwickshire Avenue and Madison Street to the south manhole on East Panama Lane. Segment 2 begins on the east side of Union on Berkshire Road to the manhole east of Moonstone Avenue.
8. Panama & Monitor Planned Sewer Area (Wards 1 and 7) – This PSA was formed to pay for the construction of a sewer trunk line in Monitor Street from Fairview to Panama Lane and in Panama lane from Monitor to approximately Parsons Way.
9. Pierce & Oak Planned Sewer Area (Wards 2 and 3) – This PSA was formed to pay for the construction of sewer lines to serve an industrial area between Buck Owens Boulevard (then Pierce Road) and Oak Street/the Kern River and from SR 204 to the Standard Pacific Railroad. These sewer lines will be constructed by the City as we accumulate enough funds to pay for them.

The above planned sewer areas (PSA's) are separated into individual accounts in accordance with California Government Code §66483 and Bakersfield Municipal Code §16.32.060(D).

Each PSA's fiscal year activity will be reported separately.

Annual Reporting Requirements

Government Code Section 66006 (b) (1) sets forth the annual compliance reporting requirements as:

For each separate account or fund established pursuant to subdivision (a), the local agency shall, within 180 days after the last day of each fiscal year, make available to the public the following information for the fiscal year:

- (A) A brief description of the type of fee in the account or fund.
- (B) The amount of the fee.
- (C) The beginning and ending balance of the account or fund.
- (D) The amount of the fees collected and the interest earned.
- (E) An identification of each public improvement on which fees were expended and the amount of the expenditures on each improvement, including the total percentage of the cost of the public improvement that was funded with fees.
- (F) An identification of an approximate date by which the construction of the public improvement will commence if the local agency determines that sufficient funds have been collected to complete financing on an incomplete public improvement, as identified in paragraph (2) of subdivision (a) of Section 66001, and the public improvement remains incomplete.
- (G) A description of each inter-fund transfer or loan made from the account or fund, including the public improvement on which the transferred or loaned fees will be expended, and, in the case of an inter-fund loan, the date on which the loan will be repaid, and the rate of interest that the account or fund will receive on the loan.
- (H) The amount of refunds made pursuant to subdivision (e) of Section 66001 and any allocations pursuant to subdivision (f) of Section 66001.

Items A through H listed above are reproduced on each report to ensure accuracy, understanding, and compliance.

ALLEN ROAD PLANNED SEWER AREA

(A) Description of fee

- Prior to approval of any development entitlement including, but not limited to, any general plan land use designation amendment, rezoning, the filing of any final map or parcel map, the granting of a conditional use permit, or after the cancellation of a Williamson Act contract within an assessment district, the subdivider/property owner shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned sanitary sewers facilities for local sanitary sewer areas pursuant to sanitary sewer plans adopted by the council, or connection to sanitary sewer facilities therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(E)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of equivalent dwelling units within the PSA boundaries¹:

2022 - \$1,837.53 per equivalent dwelling unit

2023 - \$1,984.93 per equivalent dwelling unit

(C) Beginning and ending fund balance

- Allen Road planned sewer area

Beginning Balance @ 7/1/22 \$ 573.33

Ending Balance @ 6/30/23 \$ 523,922.88

(D) Fees collected and interest earned

- PSA fees \$ 517,540.16
- Interest Earned \$ 5,809.39
- Transferred to Sewer Enterprise \$

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 103-98(1) available at: <http://lf/WebLink/0/doc/8719/Page1.aspx>

ALLEN ROAD II PLANNED SEWER AREA

(A) Description of fee

- Prior to approval of any development entitlement including, but not limited to, any general plan land use designation amendment, rezoning, the filing of any final map or parcel map, the granting of a conditional use permit, or after the cancellation of a Williamson Act contract within an assessment district, the subdivider/property owner shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned sanitary sewers facilities for local sanitary sewer areas pursuant to sanitary sewer plans adopted by the council, or connection to sanitary sewer facilities therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(E)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of equivalent dwelling units within the PSA boundaries¹:

2022 - \$1,198.54 per equivalent dwelling unit
2023 - \$1,234.49 per equivalent dwelling unit

(C) Beginning and ending fund balance

- Allen Road II planned sewer area

Beginning Balance @ 7/1/22	\$ 1.40
Ending Balance @ 6/30/23	\$ 88.60

(D) Fees collected and interest earned

- | | |
|-----------------------------------|----------|
| • PSA fees | \$ 87.00 |
| • Interest Earned | \$.20 |
| • Transferred to Sewer Enterprise | \$ |

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 084-07 available at: <http://lf/WebLink/0/doc/624165/Page1.aspx>

BRIMHALL PLANNED SEWER AREA

(A) Description of fee

- Prior to approval of any development entitlement including, but not limited to, any general plan land use designation amendment, rezoning, the filing of any final map or parcel map, the granting of a conditional use permit, or after the cancellation of a Williamson Act contract within an assessment district, the subdivider/property owner shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned sanitary sewers facilities for local sanitary sewer areas pursuant to sanitary sewer plans adopted by the council, or connection to sanitary sewer facilities therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(E)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of equivalent single family dwelling units within the PSA boundaries¹:

2022 - \$168.58 per equivalent dwelling unit

2023 - \$163.54 per equivalent dwelling unit

(C) Beginning and ending fund balance

- Brimhall planned sewer area

Beginning Balance @ 7/1/22 \$73,023.17

Ending Balance @ 6/30/23 \$74,124.29

(D) Fees collected and interest earned

- PSA fees \$ 0.00
- Interest Earned \$ 1,101.12

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 202-03 available at: <http://lf/WebLink/0/doc/235135/Page1.aspx>

CURNOW PLANNED SEWER AREA

(A) Description of fee

- Prior to approval of any development entitlement including, but not limited to, any general plan land use designation amendment, rezoning, the filing of any final map or parcel map, the granting of a conditional use permit, or after the cancellation of a Williamson Act contract within an assessment district, the subdivider/property owner shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned sanitary sewers facilities for local sanitary sewer areas pursuant to sanitary sewer plans adopted by the council, or connection to sanitary sewer facilities therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(E)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by both the number of acres and the number of dwelling units within the PSA boundaries¹:

2022 - \$3,431 per equivalent dwelling unit / \$13,724 per acre

2023 - \$3,671 per equivalent dwelling unit / \$14,684 per acre

(C) Beginning and ending fund balance

- Curnow planned sewer area

Beginning Balance @ 7/1/22 \$571,912.16

Ending Balance @ 6/30/23 \$635,948.42

(D) Fees collected and interest earned

- PSA fees \$ 49,866.18
- Interest Earned \$ 14,170.08

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 213-07 is available at: <http://lf/WebLink/0/doc/642261/Page1.aspx>

HOOPER AVENUE & KIMBERLY AVENUE PLANNED SEWER AREA

(A) Description of fee

- Prior to approval of any development entitlement including, but not limited to, any general plan land use designation amendment, rezoning, the filing of any final map or parcel map, the granting of a conditional use permit, or after the cancellation of a Williamson Act contract within an assessment district, the subdivider/property owner shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned sanitary sewers facilities for local sanitary sewer areas pursuant to sanitary sewer plans adopted by the council, or connection to sanitary sewer facilities therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(E)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of dwelling units within the PSA boundaries¹:

2022 - \$12,337.88 per equivalent dwelling unit

2023 - \$12,708.02 per equivalent dwelling unit

(C) Beginning and ending fund balance

- Hooper Avenue & Kimberly Avenue planned sewer area

Beginning Balance @ 7/1/22	\$12,252.96
Ending Balance @ 6/30/23	\$12,252.96

(D) Fees collected and interest earned

- | | |
|-------------------|--------|
| • PSA fees | \$0.00 |
| • Interest Earned | \$0.00 |

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 069-11(1) is available at: <http://lf/WebLink/0/doc/962718/Page1.aspx>

McALLISTER RANCH PLANNED SEWER AREA

(A) Description of fee

- Prior to approval of any development entitlement including, but not limited to, any general plan land use designation amendment, rezoning, the filing of any final map or parcel map, the granting of a conditional use permit, or after the cancellation of a Williamson Act contract within an assessment district, the subdivider/property owner shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned sanitary sewers facilities for local sanitary sewer areas pursuant to sanitary sewer plans adopted by the council, or connection to sanitary sewer facilities therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(E)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the PSA boundaries for commercial property and by the number of equivalent single family dwelling units for residential¹:

2022 - \$498.46 per equivalent dwelling unit / \$9,656.64 per acre
2022 - \$513.41 per equivalent dwelling unit / \$9,946.33 per acre

(C) Beginning and ending fund balance

- McAllister planned sewer area

Beginning Balance @ 7/1/22	\$151,786.53
Ending Balance @ 6/30/23	\$155,397.21

(D) Fees collected and interest earned

- | | |
|-------------------|-------------|
| • PSA fees | \$ 0.00 |
| • Interest Earned | \$ 3,610.68 |

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 170-06 available at: <http://lf/WebLink/0/doc/541898/Page1.aspx>

PANAMA & COTTONWOOD PLANNED SEWER AREA¹

(A) Description of fee

- Prior to approval of any development entitlement including, but not limited to, any general plan land use designation amendment, rezoning, the filing of any final map or parcel map, the granting of a conditional use permit, or after the cancellation of a Williamson Act contract within an assessment district, the subdivider/property owner shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned sanitary sewers facilities for local sanitary sewer areas pursuant to sanitary sewer plans adopted by the council, or connection to sanitary sewer facilities therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(E)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of dwelling units within the PSA boundaries²:

2022 - \$1,192.23 per equivalent dwelling unit
2023 - \$1,227.99 per equivalent dwelling unit

(C) Beginning and ending balance

- Panama & Cottonwood planned sewer area

Beginning Balance @ 7/1/22	\$740.00
Ending Balance @ 6/30/23	\$740.00

(D) Fees collected and interest earned

- | | |
|-------------------|--------|
| • PSA fees | \$0.00 |
| • Interest Earned | \$0.00 |

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 80-2021 available at: <http://lf/weblink/0/doc/1498185/Page1.aspx>

PANAMA & MONITOR PLANNED SEWER AREA¹

(A) Description of fee

- Prior to approval of any development entitlement including, but not limited to, any general plan land use designation amendment, rezoning, the filing of any final map or parcel map, the granting of a conditional use permit, or after the cancellation of a Williamson Act contract within an assessment district, the subdivider/property owner shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned sanitary sewers facilities for local sanitary sewer areas pursuant to sanitary sewer plans adopted by the council, or connection to sanitary sewer facilities therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(E)

(B) Amount of fee

- N/A – fee no longer charged

(C) Beginning and ending fund balance

- Panama & Monitor planned sewer area

Beginning Balance @ 7/1/22	\$2,439.69
Ending Balance @ 6/30/223	\$2,497.58

(D) Fees collected and interest earned

- | | |
|-------------------|---------|
| • PSA fees | \$ 0.00 |
| • Interest Earned | \$57.89 |

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 94-84 available at: <http://lf/WebLink/0/doc/7875/Page1.aspx>

PIERCE & OAK PLANNED SEWER AREA

(A) Description of fee

- Prior to approval of any development entitlement including, but not limited to, any general plan land use designation amendment, rezoning, the filing of any final map or parcel map, the granting of a conditional use permit, or after the cancellation of a Williamson Act contract within an assessment district, the subdivider/property owner shall pay or cause to be paid any fees for defraying the actual or estimated costs of constructing planned sanitary sewers facilities for local sanitary sewer areas pursuant to sanitary sewer plans adopted by the council, or connection to sanitary sewer facilities therefore in accordance with Article 5 of Chapter 4 of Division 2 of Title 7 of the California Government Code (Section 66483 et seq.) BMC §16.32.060(E)

(B) Amount of fee

- The fee is calculated by dividing the construction costs of the improvements by the number of acres within the PSA boundaries¹:

Benefit Area 1 fee = \$605 per acre
Benefit Area 2 fee = \$1,365 per acre

(C) Beginning and ending balance

- Pierce Road – Oak Street planned sewer area

Beginning Balance @ 7/1/22	\$62,816.58
Ending Balance @ 6/30/23	\$64,310.90

(D) Fees collected and interest earned

- | | |
|-------------------|-------------|
| • PSA fees | \$ 0.00 |
| • Interest Earned | \$ 1,494.32 |

(E) Public Improvements

- N/A

(F) Timing of projects

- N/A

(G) Interfund transfers/loans

- N/A

(H) Refunds

- N/A

¹ Resolution No. 73-84 is available at: <http://lf/WebLink/0/doc/7855/Page1.aspx>